

INTERNAL PRIVACY POLICY

No. BAL/MIS/24-25/077; Date. 31-Jan-2025

This document outlines
privacy principles and
practices for
employees handling
PERSONAL DATA at
BAL.

Bajaj Auto Limited, hereinafter referred to as “We” or “Us” or “Organization” or “BAL”, has created this policy to demonstrate its commitment to maintain privacy of its customers/data subjects by safeguarding their personal data.

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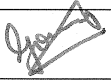
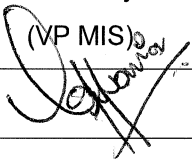
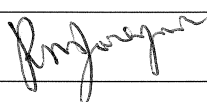
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1. Objective

The objective of this policy is to establish clear guidelines and practices for handling, storing, and processing customer personal data in compliance with applicable data privacy/protection regulations. This includes ensuring transparency in data collection, defining roles and responsibilities regarding data access, and implementing robust security measures to protect against unauthorized access or breaches.

2. Overview

This Policy outlines the principles, procedures, and responsibilities for handling customer personal data within the organization to ensure compliance with applicable data privacy/protection regulation. It establishes clear guidelines for the collection, storage, processing, and sharing of personal data by employees, contractors, or third parties. It also details the rights of data subjects, including access, rectification, and deletion requests. The Internal Privacy Policy emphasizes accountability, regular training for employees, and continuous monitoring to uphold BAL's commitment to data privacy and security.

Please note that for the purpose of this policy, the use of "data" and "information" shall be considered synonymous and has been used interchangeably. For the purpose of this policy, the term personal data refers to customer personal data.

3. Scope

This document applies to all activities, processes, systems, and personnel involved in the processing of customer personal data related to connected electric vehicles to ensure compliance with applicable data privacy/protection regulations in all personal data processing activities across Bangladesh, Brazil, Colombia, Greece, Indonesia, Kenya, Mexico, Nepal, Philippines, Portugal, Saudi Arabia, Spain, Sri Lanka, Thailand, Turkey, UAE.

Please refer Appendix B for country specific regulation. This appendix needs to be monitored frequently (at least every six months) and any changes to the respective country specific privacy related regulation in regards with consent management should be incorporated.

4. Policy

a. Privacy Principles

The following points describe the principles followed to handle and protect the personal data processed by or on behalf of BAL:

- **Lawfulness, Fairness, and Transparency:** BAL must collect, and process personal data based on clear and legitimate grounds, such as customer consent, contractual necessity, or compliance with legal obligations. Information about how customer

personal data is used should be clearly communicated in the privacy notice, ensuring transparency at all stages of data processing.

- **Purpose Limitation:** Personal data collected should only be used for specific, legitimate purposes, such as processing vehicle orders or providing customer support. Data should not be used for purposes beyond the scope of the original collection, e.g., marketing without consent.
- **Data Minimization:** Only the minimum amount of personal data necessary for the intended purpose should be collected.
- **Accuracy:** BAL must ensure that the personal data processed is accurate, complete, and kept up to date. Employees should be trained to verify customer personal data during data collection and provide mechanisms for data subjects to update their information, particularly when purchasing EVs or accessing after-sales services.
- **Storage Limitation:** Personal data should only be kept for as long as necessary to fulfil the original purpose for which it was collected.
- **Integrity and Confidentiality:** BAL must take appropriate technical and organizational measures to protect personal data from unauthorized access, loss, or damage.
- **Accountability:** BAL is responsible for demonstrating compliance with applicable data privacy/protection regulation. It must implement privacy policies, maintain documentation on data processing activities, and conduct regular audits to ensure that personal data handling practices are in line with legal requirements.
- **Data Subject Rights:** BAL must respect data subject's rights, including the right to access their data, correct inaccuracies, request deletion (right to be forgotten), and object to certain types of processing.

b. Types of personal data collected

BAL processes personal data for provisioning its services and the operation of internal business functions. The categories of personal data that BAL may collect (both directly and indirectly) to use, store and transfer have been grouped as follows:

- **Personal Identification Data:** Name, address, phone number, email address, date of birth, and other identifying information.
- **Contractual Data:** Vehicle purchase information, service agreements, warranty details, and financial data (e.g., payment information).
- **Vehicle Data:** Usage data related to the electric vehicle, including performance metrics, driving behaviour, battery data, and vehicle location.
- **Marketing Data:** Preferences, feedback, and consent related to marketing communications.

c. Provision of a privacy notice

A Privacy Notice is a statement provided to the Data Subject that outlines how BAL collects, uses, stores, and shares their personal data, along with the purposes for which it is collected.

BAL shall ensure that there are procedures in place to maintain transparency with the Data Subject as per the applicable data privacy/protection regulation and provide an appropriate Privacy Notice.

d. Choice and consent

Before the collection of the personal data, consent shall be obtained before collecting and processing the data. Details of consent are highlighted in the Consent Management Policy (policy no. BAL/MIS/24-25/079)

e. Data quality

- BAL should follow quality control and quality assurance procedures to ensure that personal data is complete and accurate as appropriate for the intended purpose of processing and shall make all possible efforts to ensure the accuracy and completeness of personal data processed by it or on behalf of it.
- BAL shall permit the data subjects, as and when requested by them, to review the information they had provided and ensure that any personal data or sensitive personal data found to be inaccurate or deficient shall be corrected or amended as feasible.
- Personal data is protected with administrative, technical, and physical safeguards to ensure its confidentiality, integrity, availability, and resilience and to prevent unauthorized or inappropriate access, use, or disclosure.

f. Cross Border Data transfer

BAL shall ensure that appropriate security controls and adequate mechanisms are in place to ensure the transfer of personal data outside the country to which the data subject belongs is performed in line with applicable data privacy/protection regulations (**Refer Cross Border Data Transfer Policy (policy no. BAL/MIS/24-25/ 081)**). The transfers shall be performed where the data subject has consented to data transfer.

g. Personal data sharing and disclosure

Disclosure of personal data by BAL to any third party shall require prior consent from the Data Subject, who has provided the personal data to BAL; or where the disclosure is necessary for compliance of a legal obligation.

The personal data of the data subject may be shared with government agencies as per the applicable data privacy/protection regulations requirements for the reasons mentioned below: -

- The sovereignty or integrity of country,
- Security of the State
- Friendly relations with foreign States
- For investigation of any offense

BAL shall establish and maintain appropriate contracts/policies/procedures to evaluate, assess, approve, review, control, and monitor the risks and materiality of all its vendor/outsourcing activities.

The policy shall entail the requirements associated with the undertaking of due diligence at the time of onboarding vendors and service providers and managing ongoing relationships to determine a third party's ability to protect BAL's personal data and information systems in line with the applicable data privacy/protection regulations (please refer *Vendor onboarding/due-diligence checklist*). Further, BAL shall ensure that adequate and appropriate data processing agreement/contractual clauses about the processing of personal data are incorporated in its contracts with third parties, vendors, service providers, or partners engaged in processing activities on behalf of BAL.

h. Data retention

BAL shall ensure that personal data processed by its various business functions are stored only as specified in the data retention policy for the specified purposes identified in the Privacy Notice at the time of collection or subsequently authorized by the Data Subject.

(Please refer Data Retention and Disposal Policy for the process to be followed to obtain detailed information related to data retained by BAL (policy no. BAL/MIS/24-25/078).)

i. Reasonable security practices and procedures

BAL should maintain reasonable physical, administrative, and technical security practices to safeguard the data and to ensure a level of security appropriate to the risk associated with its processing activities and the likelihood and severity of the harm that may result from such processing.

j. Privacy rights

BAL shall ensure policies, procedures, and mechanisms are documented and enforced to ensure privacy rights of data subjects as per the applicable data privacy/protection regulation. The rights available to data subjects include:

- Right to Access: Customers have the right to request access to their personal data held by the Company.
- Right to Rectification: Customers can request corrections to any inaccurate or incomplete personal data.
- Right to Erasure: Customers may request the deletion of their personal data under certain circumstances.
- Right to Restrict Processing: Customers may request that the processing of their data be restricted in certain situations.
- Right to Object: Customers can object to the processing of their personal data in certain situations, particularly for marketing purposes.

- **Right to Withdraw Consent:** Where processing is based on consent, customers can withdraw their consent at any time.

(Please refer Data subject rights request procedure document for more details (Policy no. BAL/MIS/24-25/ 075))

k. Data breach notification

In the event of a personal data breach, BAL shall be prepared to demonstrate and report, as required by the supervisory authority, created under the applicable data privacy/protection regulation, that it has taken all measures and has implemented security control measures by the documented information security policies and applicable data privacy/protection regulations.

(For personal data breach notification, please refer to the Breach Notification and Incident response Policy for more details (policy no. BAL/MIS/24-25/080))

l. Privacy training and awareness

BAL shall ensure that a privacy training and awareness program is in place and supported by a monitoring system that confirms all individuals who process personal data on behalf of the BAL are appropriately trained on their privacy responsibilities. BAL shall ensure that mandatory privacy awareness training is provided to all individuals who process personal data based on their roles and responsibilities and processing activities performed by them based on a defined privacy awareness roll-out and communication plan.

5. Review Frequency

This document is subject to annual review or earlier if there are changes in the business environment or applicable data privacy/protection regulations. Any updates to this document will be recorded at the beginning of the document.

6. Appendix

a. Definitions

- **Data Subjects:** A data subject is a living person whose personal data is collected, stored, or processed.
- **Personal data:** Any information relating to an identified or identifiable natural person. An identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors.
- **Sensitive Personal Data (SPD):** Personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data for the purpose of uniquely identifying a person, health data, data concerning a person's sex life or sexual orientation.

- **Processing:** Any operation or set of operations which is performed on personal data or on sets of personal data, whether by automated means, such as collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction.
- **Customer:** A customer is a person who buys goods or services from another business
- **Cross-Border Transfer:** Cross-border transfer refers to the processing of personal data by a controller or processor operating across multiple jurisdictions where they have establishments.
- **Third-Party:** A natural or legal person, public authority, agency, or body other than the data subject, controller, processor, and persons who, under the direct authority of the controller or processor, are authorized to process personal data.

****NOTE:** The definitions listed above may vary as per the scope of the document. Please refer the Country specific requirement sheet: Definitions for specific country.

b. Applicable Regional specific laws

Below is a list of the countries within scope and their corresponding data protection regulations. Please refer the detailed requirements each country in Country law comparison excel sheet.

S. No.	Country	Regulation
1	Thailand	Personal Data Protection Act 2019 ('PDPA')
2	Sri Lanka	Personal Data Protection Act
3	Nepal	Privacy Act 2075 (2018);
4	Bangladesh	The Data Protection Bill, 2023 (Draft)
5	Indonesia	The Personal Data Protection Law, 2022 (PDPL)
6	Saudi Arabia	1. Personal Data Protection Law (PDPL) 2021 2. Personal Data Protection Interim Regulations (PDPIR)
7	UAE	UAE Federal Decree-Law No. 45 of 2021 on the Protection of Personal Data
8	Mexico	The Federal Law on the Protection of Personal Data held by Private Parties – 2010
9	Turkey	Law on the Protection of Personal Data No. 6698 dated April 7, 2016 (LPPD).
10	Kenya	Data Protection Act (DPA), 2019
11	Colombia	Law 1581 of 2012 (General Personal Data Protection Law)
12	Philippines	The Data Privacy Act of 2012(DPA)
13	Brazil	Law No. 13.709 of 14 August 2018, General Personal Data Protection Law ('LGPD')
14	Greece	The General Data Protection Regulation (GDPR) 2018
15	Portugal	
16	Spain	